

Opinion of the Court

of a candidate or the major purpose of which is the nomination or election of a candidate.’”

The FEC here interpreted this language as narrowing the scope of the statutory term “political committee,” wherever applied. And, as we have said, the FEC’s General Counsel found that AIPAC fell outside that definition because the nomination or election of a candidate was not AIPAC’s “major purpose.” App. 146.

The en banc Court of Appeals disagreed with the FEC. It read this Court’s narrowing construction of the term “political committee” as turning on the First Amendment problems presented by regulation of “independent expenditures” (*i. e.*, “an expenditure by a person expressly advocating the election or defeat of a clearly identified candidate which is made without cooperation or consultation with any candidate,” § 431(17)). 101 F. 3d, at 741. The Court of Appeals concluded that the language in this Court’s prior decisions narrowing the definition of “political committee” did not apply where the special First Amendment “independent expenditure” problem did not exist. *Id.*, at 742–743.

The Solicitor General argues that this Court’s narrowing definition of “political committee” applies not simply in the context of independent expenditures, but across the board. We cannot squarely address that matter, however, because of the unusual and complex circumstances in which this case arises. As we previously mentioned, *supra*, at 16–17, the FEC considered a related question, namely, whether AIPAC was exempt from § 441b’s prohibition of corporate campaign expenditures, on the grounds that the so-called “expenditures” involved only AIPAC’s communications with its members. The FEC held that the statute’s exception to the “expenditure” definition for communications by a “membership organization” did not apply because many of the persons who belonged to AIPAC were not “members” as defined by FEC regulation. The FEC acknowledged, however, that this was a “close question.” App. to Pet. for Cert. 98a; see also App.